

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1962

By: Woolley

AS INTRODUCED

An Act relating to labor; defining term; requiring employers to use status verification system; providing penalties; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 201 of Title 40, unless there is created a duplication in numbering, reads as follows:

A. As used in this section, "status verification system" means an electronic system operated by the federal government, through which an authorized official of an agency of the State of Oklahoma or of a political subdivision therein may make an inquiry, by exercise of authority delegated pursuant to Section 1373 of Title 8 of the United States Code, to verify or ascertain the citizenship or immigration status of any individual within the jurisdiction of the agency for any purpose authorized by subsection B of this section. The status verification system shall be deemed to include:

1 1. The E-Verify Program of the Illegal Immigration Reform and
2 Immigration Responsibility Act of 1996, P.L. 104-208, Division C,
3 Section 403(a), 8 U.S.C., Section 1324a, and operated by the United
4 States Department of Homeland Security, known as the E-Verify
5 Program;

6 2. Any equivalent federal program designated by the United
7 States Department of Homeland Security or any other federal agency
8 authorized to verify the work eligibility status of newly hired
9 employees, pursuant to the Immigration Reform and Control Act of
10 1986 (IRCA), D.L. 99-603;

11 3. Any other independent, third-party system with an equal or
12 higher degree of reliability as the programs, systems, or processes
13 described in this subsection; or

14 4. The Social Security Number Verification Service, or such
15 similar online verification process implemented by the United States
16 Social Security Administration.

17 B. Beginning November 1, 2025, every employer registered to do
18 business in the State of Oklahoma must utilize a status verification
19 system for new hires.

20 C. Any employer or officer or agent of an employer who violates
21 this section shall receive three warnings. After the final warning,
22 a fine of not less than One Hundred Dollars (\$100.00) nor more than
23 Five Hundred Dollars (\$500.00) for each offense shall be incurred.

SECTION 2. This act shall become effective November 1, 2025.

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